

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO.1247 OF 2017

Mrs. Farzana Sharmin Hossain

-----Plaintiff-Appellant-Petitioner

-Versus-

Md. Shakhawat Hossain and others

--Defendant-Respondent-Opposite Parties

Dr. K.M. Hafizul Alam Hafiz, with

Mr. S.M. Bazlur Rashid,

Mr. Humayun Kabir Sikder, Advocates

----- For the Petitioner

Mrs. Rabeya Bhuiyan, with

Mr. Mahmood Morshed,

Mr. Saleh Akram, Advocates

-----For the Opposite Parties

Heard on 06.02.2018 and

Judgment on 22.02.2018

At the instance of the present plaintiff-appellant-petitioner, Mrs. Farzana Sharmin Hossain, this Rule has been issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 05.04.2017 passed by the learned Additional District Judge, 5th court, Dhaka in Family Appeal No.156 of 2016 dismissing the appeal and thereby affirming the judgment and order dated 06.06.2016 passed by the 2nd Additional Assistant Judge and Family Court, Dhaka in Family Suit No.486 of 2016 rejecting the application under Section 16A of the Family Court Ordinance, 1985 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present petitioner Mrs. Farzana Sharmin Hossain as the plaintiff

filed the Family Suit No.326 of 2016 which was renumbered as the Family Suit No.486 of 2016 in the court of learned Additional Assistant Judge and Family Court, court No.2, Dhaka for declaration that the divorce notice dated 20.03.2016 and the Arbitration Case No. 124 of 2016 filed in the Dhaka South City Corporation was not maintainable as per law. In the said suit, the present-petitioner filed an application for an injunction upon the proceeding of the said arbitration case filed under Section 16A of the Family Court Ordinance, 1985 restraining the present-defendant-opposite party No.1 from another marriage and notice to become in-operative.

The plaint case is that the present-opposite party No.1 and the petitioner had solemnized their marriage on 10.09.1999 by registering a Nikahnama and fixing Tk.5,00,001/- (Taka Five lacs one) only as dower money. During their wedlock three children were born being Sazid Shafwat Hossain (now aged about 16 years), daughter Ifrit Nahian Hossain aged about 15 years, and another son Samid Shafwat Hossain aged about 9 years. The petitioner further claims that their family life had been very happy with the above three children. The petitioner noticed some unusual conducts of the present-opposite party No.1 as her husband because of the instigations from other family members and some immoral physical relationship with others. She then filed Family Suit No.486 of 2016 of her conjugal right which is pending in the concerned court. The defendant No.1 served a notice dated 20.03.2016 for divorcing the petitioner as his wife and also

served the same notice to the Dhaka South City Corporation as per the provision of law. Accordingly, the Arbitration Case No.124 of 2016 was initiated by the Dhaka South City Corporation with an intention for reconciliation between the parties as per law. While the said case was proceeding different dates were fixed for hearing of the parties as per necessary steps required as per provision of Muslim Family Laws Ordinance, 1961. During the pendency of the said case the present-petitioner filed the Family Suit No.326 of 2016. The suit is pending for disposal. During the pendency of the said suit the present-petitioner filed an application for staying the operation of the divorce notice dated 20.03.2016 from which the Arbitration Case No.124 of 2016 arose. The said application was filed on the ground that on 17.06.2016 the present-opposite party No.1 came to the house of the present-petitioner and they had a physical relationship as husband and wife which has revoked the divorce notice dated 20.03.2016.

After considering the submissions made by the learned Advocates appearing of the respective parties the said application was rejected on 06.06.2016 by the learned trial court. Being aggrieved the present-petitioner as the appellant preferred the Family Appeal No.156 of 2016 in the court of the learned District Judge, Dhaka who by his judgment and order dated 26.06.2016 admitted the appeal and also passed the impugned order of stay upon all further proceedings of the Arbitration Case No.124 of 2016 until further order and also transferred the appeal to the court of learned Additional District

Judge, 5th court, Dhaka, who after hearing the parties dismissed the appeal by his judgment and order dated 05.04.2017. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the impugned judgment and order passed by the learned appellate court and the present Rule was issued thereupon.

Dr. Hafijul Alam Hafiz, the learned Advocate, appearing along with the learned Advocates Mr. Humayun Kabir Sikder, Mr. S. M. Bazlur Rashid, and Mr. Utfal Kumar Saha for the petitioner, submits that the courts below failed to consider the facts and circumstances that the defendant-opposite party No.1 came to the house of the plaintiff-petitioner and had a sexual intercourse within the period of 90 days from sending the notice under Section 7 of the Muslim Family Law Ordinance, 1961, as such, the courts below committed an error of law resulting in an error in the decision occasioning failure of justice, as such, the Rule should be made absolute.

The learned Advocate also submits that the provision under the Mohammedan Law physical contact between the parties revokes any divorce notice impliedly, as such, the arbitration proceeding in the Dhaka South City Corporation cannot be a valid proceeding until a fresh divorce notice is served by the husband to the wife, as such, the Rule should be made absolute.

The Rule has been opposed by the present-opposite party No.1.

Mrs. Rabeya Bhuiyan, the learned Senior Counsel appearing along with the learned Advocate Mr. Mahmood Morshed, and Mr. Shaleh Akram for the opposite parties, submits that the divorce notice dated 20.03.2016 was served by the present-opposite party No.1 as the husband upon the present-petitioner, wife and also to the concerned authorities including Dhaka South City Corporation as per the provision of the Muslim Family Law Ordinance, 1961, accordingly, the Arbitration Case No.124 of 2016 was initiated and concluded by the Executive Arbitration Council Officer and Local Executive Officer, Anchal-1, Dhaka South City Corporation on 02.05.2017, therefore, any ad-interim order of stay cannot be passed for staying the arbitration proceeding, as such, the Rule should be discharged.

The learned Advocate further submits that Section 3 of the Ordinance, 1961 is an overriding provision of law which overrides even the Sharia Law, Customs and Uses under the Muslim Family Law, therefore, a divorce notice by a husband to the wife under Section 7(1) of the said Ordinance, 1961 cannot be stayed unless and until the parties jointly revoke or withdrawn the arbitration proceeding by joint prayer within the period of 90 days, thus, the Arbitration Council has no other alternative but to declaration divorce final but the present-petitioner obtained the present Rule by misleading this court which is liable to be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering

the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the Annexures therein and also considering the Supplementary-affidavit and Counter-affidavit filed by the respective parties, it appears to me that the present-petitioner and the opposite party No.1 married on 10.09.1999 and there are three children in their family. The present-petitioner (wife) noticed some unusual conducts or acts of her husband in the year of 2016, including, engaging into some illicit relations with others at the instigation from his family members. The admitted position between the parties is that they were married and they have three children. However, there are some disputes as to the effectiveness of a divorce proceeding initiated by the present-opposite party No.1 (husband) by serving a divorce talaknama notice through the Kazi Office under section 7(1) of the Ordinance, 1961. The present-petitioner served the said notice on 20.03.2016 and the Dhaka South City Corporation initiated the proceeding on 13.04.2016. Before conclusion of the said steps of the divorce proceeding the present-petitioner filed the suit on 05.06.2016 for declaring the divorce proceeding illegal and not binding upon her.

In the above given factual asfacts in this case, this Court has to take a decision whether the courts below committed any error of law by passing the concurrent decision rejecting the prayer to stay the divorce proceeding continuing in the Arbitration Case No.124 of 2016 before the Arbitration Council under the City Corporation. In order to

take a decision upon the said matter, I have carefully examined the impugned judgment and order passed by the courts below along with other relevant documents submitted by the respective parties. I have also considered the Family Courts Ordinance, 1985 and also the Muslim Family Laws Ordinance, 1961. The above Ordinances deal with a divorce proceeding as well as the proceeding for the divorce purpose. Section 7 of the Ordinance, 1961 reads as follows:

7. **Talaq-(1)** Any man who wishes to divorce his wife shall, as soon as may be after the pronouncement of *talaq* in any form whatsoever, give the Chairman notice in writing of his having done so, and shall supply a copy thereof to the wife.

As per the above provision of law, the present-opposite party No.1 served a divorce notice on 20.03.2016 and follows all the steps as per the above law. However, the present-petitioner filed the suit challenging the legality of the said divorce notice on the ground that there was a break of notice within 90 days period for conclusion of the divorce proceeding by way of having a sexual relationship between them on 17.06.2016. In this regard I consider that such kind of physical contact was simply an emotional conduct in ignorance of a legal procedures which a court of law cannot take into consideration because a statutory stipulated period of time and manner.

In this regard Section 7(3) and (5) of the Ordinance describes any lawful revocation of any divorce proceeding which reads as follows:-

“(3) Save as provided in sub-section (5), a *talaq*, unless revoked earlier, expressly or otherwise, shall not be effective until the expiration of ninety days from the day on which notice under sub-section (1) is delivered to the Chairman.

(5) If the wife be pregnant at the time *talaq* is pronounced, *talaq* shall not be effective until the period mentioned in sub-section 2[(3)] or the pregnancy, whichever be later, ends.”

In view of the above provision of law, a divorce proceeding can only be interrupted or even revoked by the order of the Arbitration Council on the joint prayer of both the husband and wife on consent or by the divorce notice serving party to withdraw the proceeding after reconciliation between the parties. In the instant case, the present-opposite party No.1 served the divorce notice and there is no evidence before this Court that he withdraw the divorce proceeding in order to reconciliation. Therefore, the suit filed by the present-petitioner, the learned trial court would take a final conclusion of the suit on merit after hearing the parties. Regarding this ad-interim order of stay of a proceeding is not a permissible by any party other than the parties concerned through the arbitration proceeding in the Arbitration Council. As such, 90 days period of the reconciliation is a final period of revocation of any divorce notice. In view of the above, I do not

consider that the learned appellate court committed any error of law by concurrently finding against the present-petitioner as the applicant for staying proceeding of the divorce notice by any ad-interim order of stay. However, the learned trial court would dispose of the Family Suit No.326 of 2016, which was renumbered as Family Suit No.486 of 2016 on merit after giving the sufficient opportunities to both the parties for producing relevant evidence.

I am of the view that the statutory provision of Section 7 under the Ordinance, 1961 overrides any other Provision of law or even Customs or Uses or Practice, therefore, any such relation between the parties would be considered by the learned trial court after examining evidence adduced and produced by the parties in the trial court, but, any ad-interim order of stay would not be granted which could delay the disposal of the Family Suit No.486 of 2016 pending in the court of learned Additional Assistant Judge and Family Court No.2, Dhaka.

In view of the above, I have considered the findings of the learned appellate court who concurrently lawfully dismissed the appeal preferred by the present-petitioner on the basis of the following finding:-

প্রকৃতপক্ষে সালিশী পরিষদের কার্যক্রমের উপর স্থগিতাদেশ কার্যকর না থাকলে এতদিনে তালাক কার্যকর হইতে। যদিও চেয়ারম্যান নোটিশ প্রাপ্ত হওয়ার ৯০ দিন অতিবাহিত হইয়াছে এবং সমস্ত বাদী ও বিবাদীর মধ্যে তালাক কার্যকর হইয়াছে মর্মে প্রতীয়মান হয়। কাজেই আপীলকারীপক্ষের বিজ্ঞ কৌশলীর উপর উল্লিখিত দাবী যুক্তিযুক্ত ও আইনানুগ নয়।

On the basis of the above discussions and after perusal of the impugned judgment and order I consider that the learned appellate court committed no error of law by dismissing the appeal concurrently. I am, therefore, not inclined to interfere into the judgment and order passed by the learned appellate court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged with the following direction.

The learned Additional Assistant Judge, 2nd Court, Dhaka and Family Court, Dhaka is hereby directed to conclude the Family Suit No.486 of 2016 previously the Family Suit No.326 of 2016 within 2 (two) months from the date of receipt of this judgment and order of this Court without allowing any unnecessary adjournment on the prayer of the either of the parties.

The ad-interim order of stay granted at the time of issuance of the Rule is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the concern court immediately.